

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
JOSE GARCIA,

Plaintiff,

-against-

THE CITY OF NEW YORK, SERGEANT JOHN
TOSCANO, Tax No. 937645000, SERGEANT RYAN
HUGHES, and POLICE OFFICERS JOHN DOES #1-10
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 19, 2014

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Sergeant John Toscano, Tax No. 937645, Criminal Intelligence Division, 1 Police Plaza,
Room 1108, New York, New York 10038
Sergeant Ryan Hughes, Criminal Intelligence Division, 1 Police Plaza, Room 1108, New
York, New York 10038

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JOSE GARCIA, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and by the common law and the laws of the State of New York. On June 24, 2011, at approximately 7:00 a.m., plaintiff, Jose Garcia, while lawfully inside of his apartment located at 2529 Matthews Avenue, Apartment 5B, Bronx, New York, was subject to an unlawful search, seizure, detention, false imprisonment and false arrest by the defendant New York City police officers. Thereafter, while at the 49th Precinct, plaintiff was subjected to an unconstitutional strip search by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of, and unlawfully strip-searched plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JOSE GARCIA is a resident of the County of Bronx, State of New York.

3. Sergeant JOHN TOSCANO, Tax No. 937645000, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Sergeant JOHN TOSCANO, Tax No. 937645000, was at all times relevant herein assigned to the 49th Precinct.

5. Sergeant JOHN TOSCANO, Tax No. 937645000 is being sued in his individual and official capacity.

6. Sergeant RYAN HUGHES, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Sergeant RYAN HUGHES, is and was at all times relevant herein, assigned to the 49th Precinct.

8. Sergeant RYAN HUGHES is being sued in his individual and official capacity.

9. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On June 24, 2011, at approximately 7:00 a.m., plaintiff was lawfully present inside of his apartment located at 2529 Matthews Avenue, Apartment 5B, Bronx, New York, when the individually named defendants forcefully and unlawfully entered his apartment without probable cause or any legal justification.

17. Upon unlawfully entering the apartment defendants screamed at plaintiff in an unreasonable, unnecessary, extremely frightening and threatening manner and ordered him to get on the ground.

18. Plaintiff complied with the defendant police officers' orders, including but not limited to their order to get on the ground.

19. The individually named defendants intentionally and/or negligently caused plaintiff severe emotional distress by placing a gun to plaintiff's neck without cause or legal justification.

20. The individually named defendants unlawfully searched plaintiff's apartment and broke/ruined plaintiff's dresser, sofa, and curtains during the course of the unlawful search of the apartment.

21. At no time were any illegal guns, drugs or contraband found in the apartment, or on plaintiff's person, or in plaintiff's possession, custody, or control.

22. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

23. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

24. Nevertheless, the individually named defendants handcuffed and falsely arrested plaintiff, without probable cause to arrest him.

25. Defendants transported plaintiff to the 49th precinct against his will for arrest processing.

26. Upon arrival at the 49th Precinct, plaintiff Jose Garcia was placed in a holding cell by the defendants, where defendants unlawfully stripped searched plaintiff Jose Garcia without reasonable suspicion or probable cause.

27. At no time did the officers have an objective reason to believe that plaintiff secreted drugs, weapons or illegal contraband under his clothing or inside a body cavity.

28. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

29. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks.

30. Plaintiff was then ordered to face the defendant police officers and was forced to lift his genitals.

31. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff, and the unlawful strip search caused plaintiff emotional distress and embarrassment.

32. At approximately 2 p.m. on June 24, 2011, after being unlawfully detained by defendants for approximately 6 hours at the 49th Precinct, defendants issued plaintiff Jose Garcia a Desk Appearance Ticket and told plaintiff that he was free to leave.

33. The individually named defendants issued the Desk Appearance Ticket to plaintiff for allegedly possessing a controlled substance.

34. However, the defendants lacked an objective reasonable basis to accuse plaintiff of possessing a controlled substance since they did not discover any controlled substance when they searched his home or when they searched his person.

35. After the Bronx District Attorney's Office had the opportunity to review the factual bases provided by defendants for arresting plaintiff, it was apparent that the defendants lacked probable cause to arrest plaintiff. On or about October 27, 2011, the Bronx County District Attorney's Office declined to prosecute plaintiff.

36. Upon information and belief, while being interviewed by a representative from the District Attorney's Office about plaintiff's arrest, defendant Sergeant John Toscano was unable to articulate a crime plaintiff allegedly committed or the name of the controlled substance that plaintiff was arrested for allegedly possessing.

37. The other individually named defendant police officers that were present at the scene of the incident failed to intervene to prevent the unlawful search and detention of plaintiff, even though they knew or should have known that plaintiff was unlawfully arrested, without probable cause.

38. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

39. The unlawful search and strip search, false arrest, and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

40. The unlawful strip search of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

41. Plaintiff was evicted from his apartment as a result of the unlawfully arrest of plaintiff by defendants and suffered severe economic and emotional damages as a result of the eviction.

42. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

43. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

44. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that “there is a ‘[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.’” Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

45. Nevertheless, despite the holding by the District Judge, to date, the NYPD has failed to remedy this unlawful and unconstitutional policy and practice by its officers.

46. As a result of defendant City of New York and the New York City Police Department’s deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis supporting a legal reason to do so.

47. Additionally, there is a policy, practice or custom wherein the New York City Police Department, wherein New York City Police Officers unlawfully arrest individuals for allegedly possessing a controlled substance without first identifying the substance and ensuring it is, in fact, a controlled substance.

48. This policy and practice directly caused the unconstitutional arrest of plaintiff, as the officers did not have any idea about whether plaintiff possessed a controlled substance when they arrested him, and they made baseless assumptions about whether it was likely that there was a controlled substance located in plaintiff’s apartment and they were incorrect.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, unlawfully strip searched, and falsely arrested and imprisoned, without reasonable suspicion or probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

63. Defendants failed to intervene to prevent the unlawful conduct described herein.

64. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Plaintiff was searched by defendants without an individualized reasonable suspicion or probable cause that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

67. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

SIXTH CAUSE OF ACTION

Municipal Liability Under 42 U.S.C. § 1983

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

70. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

71. Additionally, the aforementioned customs, policies, usages, procedures and rules of defendant City of New York and the New York City Police Department, included but were not limited to, unlawfully arresting individuals, without probable cause or legal justification for allegedly possessing a controlled substance, without first identifying the substance at issue, verifying it is a controlled substance, and without even having any factual or objective basis to suspect which controlled substance the officer believes the arrestee possesses.

72. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

73. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

74. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

75. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched.

76. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

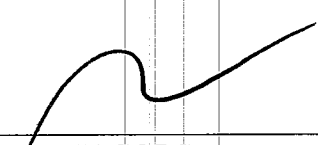
JURY DEMAND

77. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jose Garcia demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 19, 2014

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
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New York, NY 10007
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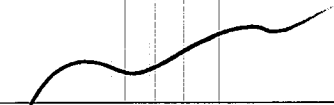
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Sergeant John Toscano, Tax No. 937645, Criminal Intelligence Division, 1 Police Plaza,
Room 1108, New York, New York 10038
Sergeant Ryan Hughes, Criminal Intelligence Division, 1 Police Plaza, Room 1108, New
York, New York 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 19, 2014



STUART E. JACOBS